



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-102 | 4614 E Pershing Blvd. – Annexation
Date: August 12, 2024

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 8/12/2024
- Public Services Committee 8/20/2024
- Second reading 8/26/2024
- Public Services Committee 9/4/2024
- Third and final reading 9/9/2024

Related Items:

- PUDC-24-102: Assigned Zoning

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED EAST OF US-30 AND NORTH OF AND ADJACENT TO EAST PERSHING BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) James O'Connor, owner of:

Lots 33 and 34, Sunnyside Addition, 4th Filing, Resub TR 137-140

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-1 Agricultural and Rural Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for

Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

LEGEND



SET CORNERS PER THIS SURVEY WITH 1 1/2" ALUMINUM CAP STAMPED
PLS 4828.

RECORDED

(R)

APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING, THIS _____ DAY
OF _____, 2024.

ATTEST:

MAYOR: Patrick Collins

CITY CLERK: Kristina Jones

ANNEXATION AREA

TOTAL AREA: 15,104.5 square feet or 0.35 Acre

ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 24%

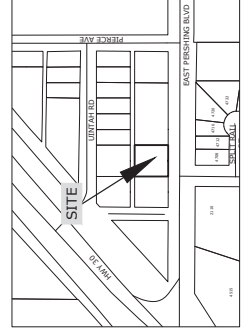
ANNEXATION DESCRIPTION

Re-sub-division of Tracts 137 to 140, Sunnyside Addition Fourth Filing, Lot 33 & 34, further described as follows: Beginning at the Southeast corner of said Lot 34, Thence S89°42'35"W, a distance of 118.32' to the Southwest corner of Lot 33; Thence N01°15'15"W, a distance of 127.66' to the Northwest corner of Lot 33; Thence S89°42'35"E, a distance of 118.32' to the Northeast corner of Lot 34; Thence S01°01'15"E, a distance of 127.66' to the point of beginning. Containing 15,114.9 square feet or 0.35 Ac. more or less.

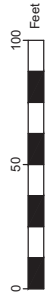
CERTIFICATE OF SURVEYOR

I, John J. Studley, a Professional Land Surveyor in the State of Wyoming, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

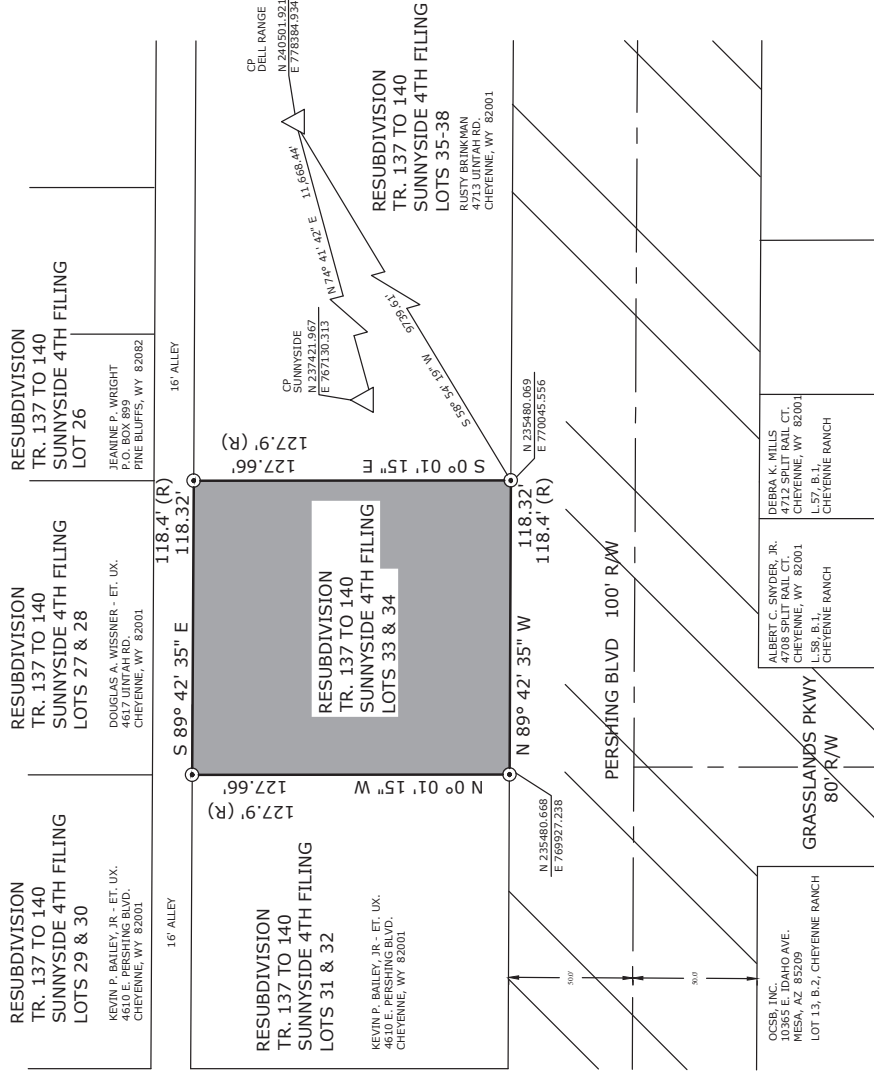
VICINITY MAP



SCALE BAR



RECORDING





A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY
AUGUST 12, 2024
STAFF REPORT

FILE: PUDC-24-102: 4614 E Pershing Blvd. - Annexation

REQUEST: An annexation of 0.35 acres of land

LOCATION: East of US-30 and north of and adjacent to E Pershing Blvd.

APPLICANT: Jack Studley

AGENT: Jack Studley

OWNERS: James O'Connor

PURPOSE: Connect to City water.

PREPARED BY: Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing 0.35 acres of land to allow a City water connection. The land is currently used as a single-family home. The annexed area will be assigned a City zone based on the underlying County zone. No other applications have been submitted for this property at this time.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by an assigned City zone of MUR Mixed-use Residential zone.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial	County MU	Residential
North	Mixed-use Commercial	County MU	Residential
South	Urban Residential	MR Medium-density Residential	Residential
East	Mixed-use Commercial	County MU	Residential
West	Mixed-use Commercial	County MU	Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. By being within City Limits the property will be able to connect to City services.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property is developed with a single-family home on a parcel smaller than those currently allowed by the County, this is urban development that already is a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the west. The

contiguity to the City and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The annexation of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Most utilities are within the area. Sanitary sewer would need to be extended to serve this property.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 24% contiguous, along the southern edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on July 9, 2024. The public hearing for this annexation is scheduled for August 12, 2024. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is July 15, 2024. The earliest confirmation of delivery was dated July 10, 2024.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with urban residential uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process the Board of public utilities did make the following comment:

1. There is no Sanitary Sewer infrastructure immediately adjacent to the site. Sanitary Sewer service will require extension of public infrastructure to serve the site.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

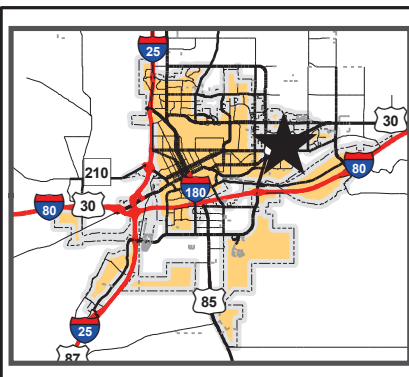
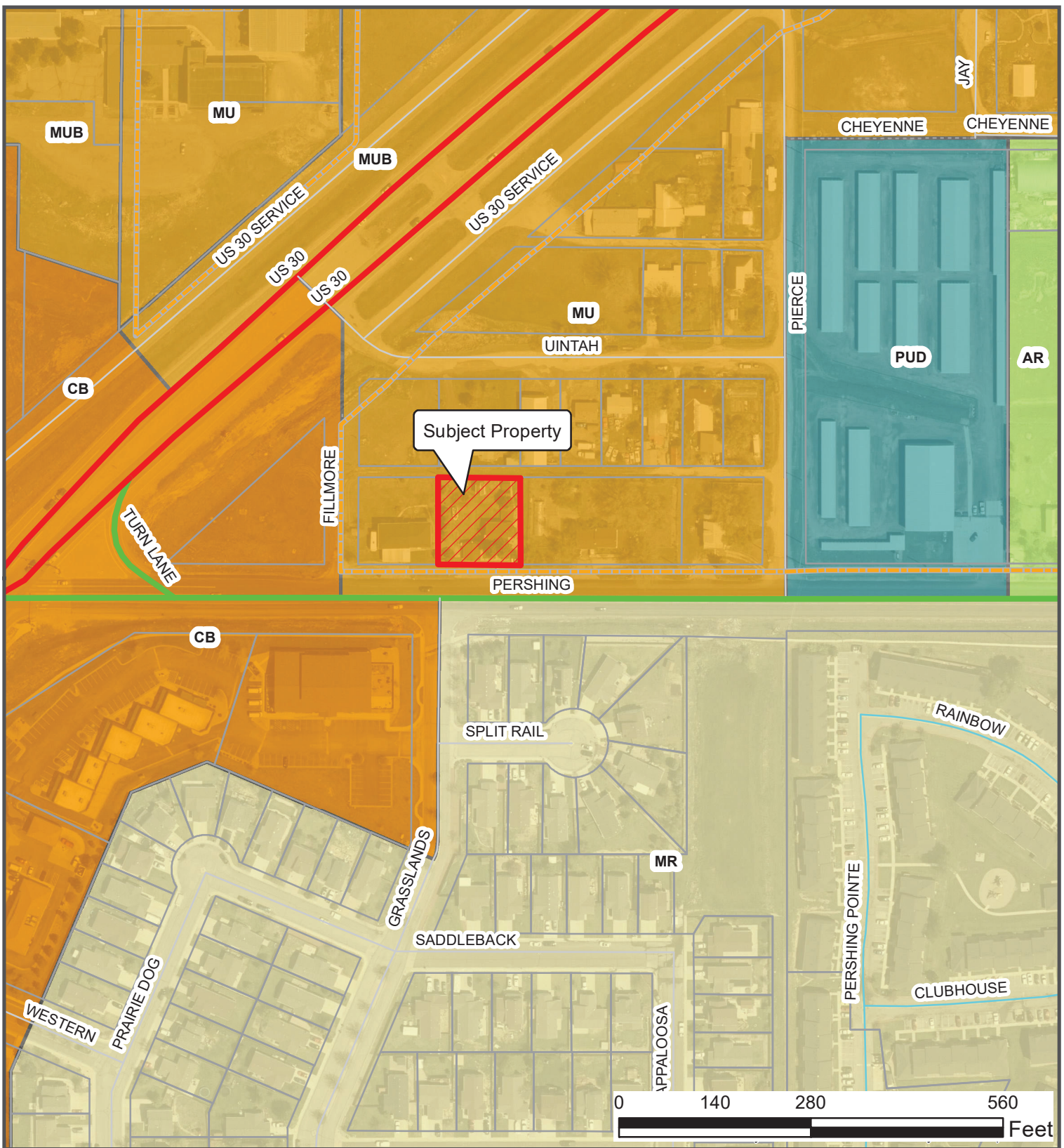
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map

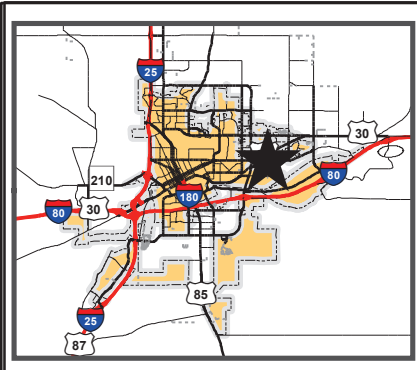
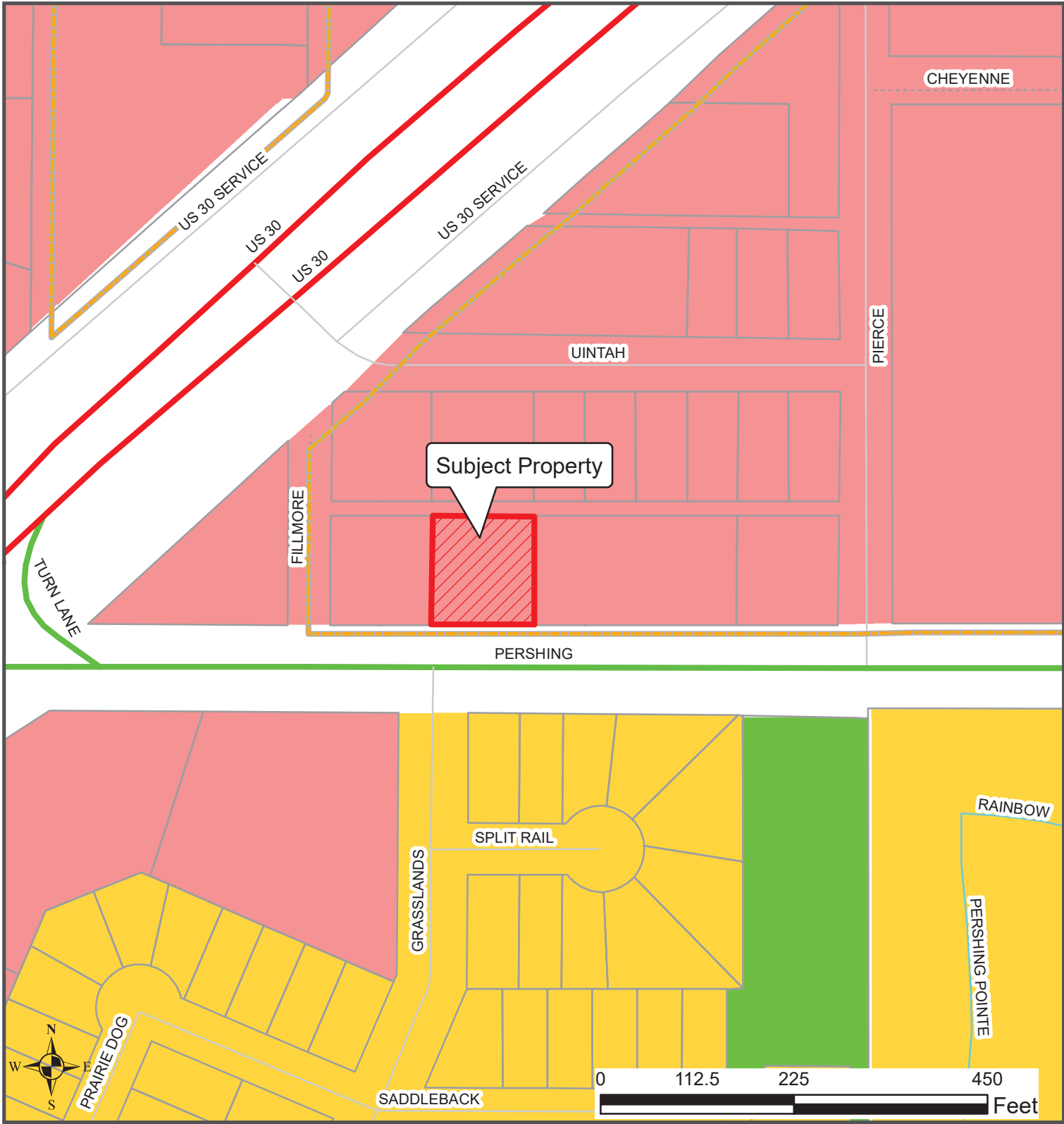


Attachment 1: Zoning Map PUDC-24-102

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | |
|--|--|
| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med. Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
|--|--|



Attachment 2: Land Use Map PUDC-24-102

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	City Limits		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Platted not built				
	Private				
	Ownership				



Cheyenne, WY

6/11/2024

PUDC-24-102

Annexation

Status: Active

Submitted On: 6/11/2024

Pidn #: 14662742101000

Primary Location

4614 E PERSHING BLVD

Cheyenne, WY 82001

Owner

O CONNOR, JAMES MICHAEL
ET UX

4614 E PERSHING BLVD

CHEYENNE, WY 82001

Applicant

John Studley

307-287-4755

jklz0318@gmail.com

 615 West Dale Blvd.
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Please Note: Annexation applications may **not be withdrawn** (Wyoming State Statute 15-1-403 b). If mylars are not provided in an attempt to 'withdraw' the application, the City will hire a surveyor to produce mylars and invoice the applicant for the work preformed.

The property owner is aware this application may not be withdrawn.*



I understand final stamped and signed mylars are required prior to final Governing Body approval.*



Project Name* 

O'Connor Annexation

Annexation Type*

Landowner Petition

Pursuant to UDC 2.4.2 and 2.2.8, the City zone assigned will be the standard City zone most closely matching the current County zone. If the assigned zone is not the desired zone, please also apply for a zoning map amendment. The anticipated assigned zoning based on the current County and City zoning requirements can be found on a policy document here.

Annexation Review Criteria

The following review criteria are found in Wyoming State Statute regarding annexation. Please acknowledge the proposed annexation meets each review criterion by checking the box.

An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town (15-1-402 a i)*



The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town (15-1-402 a ii)*



The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed (15-1-402 a iii)*



The area sought to be annexed is contiguous with  or adjacent to the annexing city or town (15-1-402 a iv)*



Percent Contiguous*

24%

No tract of land or any part thereof, whether consisting of one (1) parcel or two (2) or more contiguous parcels owned by one (1) landowner or owned jointly by two (2) or more landowners as cotenants, which comprises forty (40) acres or more and which together with the buildings or improvements situated thereon has an assessed valuation in excess of forty thousand dollars (\$40,000.00) as of the current assessment for property tax purposes, may be annexed without the written consent of the landowner or landowners, unless the tract of land is situated entirely within the boundaries of the annexing city or town (15-1-412)*



Zoning Assignment Review Criteria

The review criterion for a zoning assignment:

"1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis." (UDC 2.2.8.d.1)

If the assigned zone is not the desired zone, please submit for a separate zoning map amendment.

Check the box to acknowledge this requirement.*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ John J. Studley

Jun 11, 2024

LEGEND



SET CORNERS PER THIS SURVEY WITH 1 1/4" ALUMINUM CAP STAMPED
PLS 4828.

RECORDED

(R)

APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING, THIS _____ DAY
OF _____, 2024.

ATTEST:

MAYOR: Patrick Collins

CITY CLERK: Kristina Jones

ANNEXATION AREA

TOTAL AREA: 15,104.5 square feet or 0.35 Acre

ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 24%

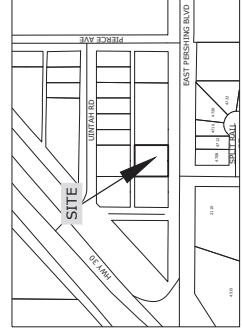
ANNEXATION DESCRIPTION

Re-sub-division of Tracts 137 to 140, Sunnyside Addition Fourth Filing, Lot 33 & 34, further described as follows: Beginning at the Southeast corner of said Lot 34, Thence S89°42'35"W, a distance of 118.32' to the Southwest corner of Lot 33; Thence N01°15'15"W, a distance of 127.66' to the Northwest corner of Lot 33; Thence S89°42'35"E, a distance of 118.32' to the Northeast corner of Lot 34; Thence S01°01'15"E, a distance of 127.66' to the point of beginning. Containing 15,114.9 square feet or 0.35 Ac. more or less.

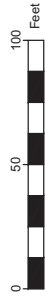
CERTIFICATE OF SURVEYOR

I, John J. Studley, a Professional Land Surveyor in the State of Wyoming, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

VICINITY MAP



SCALE BAR



RECORDING

